

As part of the ARC2 project, the Agency for the Protection of Personal Data organized a free online workshop titled "Application of GDPR in Accounting" on Monday, February 12, 2024, intended exclusively for employees in the accounting sector.

The agency officials explained during the workshop how to apply the provisions of the General Data Protection Regulation in accounting, specifically through practical examples, allowing participants to learn who the data controller and the data processor are, as well as what a processing agreement between the controller and the processor should contain. Additionally, there was discussion on implementing appropriate technical and organizational measures to protect personal data in order to minimize the possibility of unlawful processing of personal data and data breaches.

Participants also had the opportunity to address the most common uncertainties they encounter regarding the legal bases for processing personal data, such as whether employee consent is required for their registration with HZZO and HZMO, and whether it is permissible to copy employees' bank cards for the purpose of salary payment. It is a common misconception that copying/scanning a bank card is a legal obligation of the employer; however, the Labor Law does not specify copying or scanning a bank card as a legal obligation of the employer, which means that this legal provision does not constitute a lawful legal basis. If the employer can demonstrate a legitimate interest in copying or scanning the employee's bank card (verification number for salary payment), appropriate technical measures should be implemented to protect unnecessary data (for example, data masking).

In addition to copying bank cards, another frequent uncertainty is the copying of the employee's or potential employee's ID card. Just like with copying bank cards, there is no legal obligation for the employer to copy an ID card. If there is an exceptional legitimate interest for the employer to collect a copy of the employee's ID card, this must be explained, and efforts should be made to mask irrelevant data on the copy.

However, as emphasized in the workshop, even with an adequate legal basis, the data controller must adhere to the principles of personal data processing outlined in Article 5 of the General Data Protection Regulation, including the "data minimization principle," which requires that personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.

Furthermore, the presentation from the lecture will be published at:

<https://arc-rec-project.eu/prezentacije/>, while the recording of the workshop will be made available by the end of April within the digital tool Olivia at the link: <https://olivia-gdpr-arc.eu/hr>.